

Court No. - 40

Case :- WRIT - C No. - 29358 of 2023

Petitioner :- Mo. Anwar Ansari

Respondent :- Purvanchal Vidhut Vitrana Nigam Ltd And Another

Counsel for Petitioner :- Arun Mishra

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

1. Heard Mr. Arun Mishra, learned counsel for the petitioner, Mr. Rajesh Kumar Mishra, learned Advocate, holding brief of Mr. N.K. Tiwari, learned counsel for the Electricity Department and perused the record.

2. By means of the instant petition, the petitioner has prayed for following reliefs:-

"(i) Issue a writ in the nature of Mandamus commanding respondent No.2 to enhance the load of petitioner from 3 KW to 6 KW forthwith and required additional security deposit may be appropriate in the next bill of petitioner giving benefit of Clause 6.9 of the U.P. Electricity Supply Code, 2005.

(ii) Issue any other order as this Hon'ble Court may deem fit and proper in the circumstances of the case."

3. Learned Standing Counsel fairly states that in case petitioner moves a fresh application at the earliest before the Competent Authority, definitely the same would be considered expeditiously.

4. In the facts and circumstances of the case, no useful purpose would be served in keeping the writ petition pending consideration. The writ petition, on consent, is **disposed of** asking the petitioner to move a fresh representation ventilating all his grievance before the Purvanchal Vidhut Vitrana Nigam Ltd.-respondent no.1. In case any such representation is moved by the petitioners within ten days, we hope and trust that the said representation would be considered on merit by the Competent Authority, who must accord audience to the parties having stake in the matter and only thereafter decide the said representation expeditiously, preferably within six weeks. Suffice to indicate that the Court has not adverted on the merits of the case.

Order Date :- 16.10.2023

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